

Filmmaker Distribution Agreement

Non-exclusive digital distribution · DiscovrTV (Pty) Ltd trading as 4flikeks

THE PLATFORM	
THE FILMMAKER	
REGISTRATION / ID NO.	
ADDRESS	
EMAIL	
THE FILM	
RUNNING TIME	
YEAR OF PRODUCTION	
EFFECTIVE DATE	

1 · What this agreement is for

1. The Filmmaker owns or controls the Film and wishes to make it available to viewers through the 4flikeks platform.
2. The Platform operates 4flikeks.com, where viewers pay to stream films online.
3. This agreement sets out the terms on which the Film is distributed. It does not transfer ownership of the Film.

2 · Rights granted

1. The Filmmaker grants the Platform a **non-exclusive** licence to stream the Film to viewers through 4flikeks, on demand, over the internet.
2. The licence is **worldwide** unless the Filmmaker limits it in writing.
3. The Filmmaker also grants permission to use the Film's title, poster, key art, trailer, stills, synopsis, and the names and likenesses of cast and crew, to promote the Film on 4flikeks and on social media.
4. The Platform may encode, compress and create streaming versions of the Film as needed for delivery. It may not otherwise alter or edit the Film without written permission.
5. **The Filmmaker keeps the copyright in the Film** and remains free to license it anywhere else, at any time, including to broadcasters and streaming services. Nothing here is exclusive.

3 · What the Filmmaker confirms

The Filmmaker confirms and warrants that:

1. They own or control all rights needed to grant this licence.
2. All third-party elements in the Film are cleared for this use — including **music and sound recordings, archive or stock footage, artwork, and performances by cast and crew**.
3. All performers have consented to the Film being distributed in this way, and to their name and likeness being used to promote it.

4. The Film does not infringe anyone's copyright, trade mark, privacy or other rights, and is not defamatory or unlawful.
5. There is no dispute, claim or encumbrance affecting the Film that would prevent this agreement.
6. The Filmmaker will tell the Platform immediately if any of this stops being true.

Indemnity. If a claim is brought against the Platform because any of the above turns out to be untrue, the Filmmaker will cover the Platform's reasonable losses and legal costs arising from that claim. The Platform will tell the Filmmaker promptly of any such claim and will not settle it without their agreement.

4 • The screenplay

Separate from the Film, and entirely optional. Nothing here obliges the Filmmaker to publish a screenplay, and the Film can be distributed without one.

1. If the Filmmaker chooses to upload the screenplay, they grant the Platform permission to make it readable on 4flike by people with a registered account. **Readers do not have to buy the Film.**
2. **The Filmmaker keeps the copyright in the screenplay.** This is permission to let people read it, not a transfer of anything, and it is non-exclusive.
3. **The writer is often not the director.** The Filmmaker confirms they either wrote the screenplay or have the writer's permission to publish it. If a third party holds those rights, that permission must be obtained first.
4. The screenplay may be removed by the Filmmaker at any time from the portal, and takes effect immediately.
5. The purpose is educational. There is no repository of South African screenplays, and people studying film have very little local work to read. The Platform will not sell the screenplay, licence it onward, or use it for anything beyond making it readable on 4flike.
6. The Platform requires an account to read a screenplay, but cannot prevent someone who has access from keeping a copy. The Filmmaker should upload a screenplay only if they are comfortable with that.

WHO WROTE THE SCREENPLAY

5 • Money

FILMMAKER'S SHARE	70% of net revenue from the Film
PLATFORM'S SHARE	30%, covering hosting, streaming, payment processing, support and platform operation
NET REVENUE MEANS	the amount paid by the viewer, less VAT and less payment gateway fees
PAYOUTS	Monthly in arrears, once the balance exceeds the published minimum, by EFT to the account the Filmmaker nominates
REPORTING	The Filmmaker can see sales, views and earnings for the Film at any time in the filmmaker portal
SCREENPLAYS	Reading a screenplay is free. It generates no revenue and no share is payable on it.

1. The Filmmaker sets the rental and purchase prices for the Film, within any range the Platform publishes from time to time.
2. Where a sale is refunded or charged back, the amount is deducted from the Filmmaker's share in the same or a following period.
3. Each party is responsible for its own tax.

6 • Cast and crew promotion

1. 4flike gives each named cast or crew member their own tracked link to the Film, so that sales driven by their audience can be measured.
2. Any payment or share the Filmmaker agrees with cast or crew for promoting the Film is **a matter between the Filmmaker and those individuals**. The Platform provides the measurement, not the arrangement.
3. The Filmmaker states in the platform what each cast member earns, and that statement is shown to those cast members before they begin promoting. The Filmmaker pays them directly; the Platform measures but does not disburse.
4. Most films on 4flike share 15–20% of net revenue on attributed sales, paid per sale rather than split evenly. This is a norm, not a requirement.

7 • How the Film is protected

1. The Film is **streamed only**. Viewers cannot download it, and the Platform does not distribute copies of the Film file.
2. Viewers buy a personal licence to watch. The Platform's terms prohibit recording, copying, re-transmitting or public exhibition.
3. The Platform will take reasonable technical measures to prevent unauthorised access and copying, but does not guarantee that no unauthorised copying can occur.

8 • Term and ending it

1. This agreement starts on the effective date and continues until either party ends it.
2. Either party may end it on **30 days' written notice**, by email to the addresses above.
3. The Platform may remove the Film immediately if it reasonably believes the Film infringes someone's rights or is unlawful, and will tell the Filmmaker why.
4. When this agreement ends, the Film is removed from sale. **Viewers who have already bought permanent access keep it**, and the Platform may continue streaming the Film to those viewers only. Revenue sharing continues to apply to any income after termination.
5. Any screenplay is removed when this agreement ends, and is not retained.
6. Amounts owed to the Filmmaker at the end are paid in the next normal payout cycle.

9 • General

1. Neither party may transfer this agreement without the other's written consent, except to a company that takes over its business.
2. This agreement, together with the 4flike terms published at 4flike.com/terms, is the whole agreement between the parties about the Film. Where they conflict, this agreement applies.
3. Any change must be in writing and agreed by both parties.
4. The Platform's liability to the Filmmaker is limited to the amounts payable to the Filmmaker under this agreement. Neither party is liable for indirect or consequential loss.
5. This agreement is governed by the law of the Republic of South Africa, and the South African courts have jurisdiction.
6. If a dispute arises, both parties will first try in good faith to resolve it directly before taking any other step.

FOR DISCOVRTV (PTY) LTD

THE FILMMAKER

Signature

Signature

Name and capacity

Name and capacity

Date

Date

Sign digitally in a PDF reader, or print and sign by hand. Return the completed agreement to **filmmakers@4flike.com**.